Any accessory parking will be restricted to operable automobiles, and such parking space will be provided in the rear yard of the Lot, or the side yard of the Lot if the garage and accessory parking and turn around area are in the side yard.

Each Lot shall have a garage fully capable of housing a minimum of two automobiles. All buildings, including garages, shall be attached to the dwelling structure, except the single outbuilding provided for hereinabove.

No structure of any kind shall be allowed on any Lot, except the dwelling house and attached garage, and if approved as provided for hereinabove, a single outbuilding. Nothing shall be stored in the open outside said dwelling, garage or outbuilding except neatly stacked firewood for use in the residence on that Lot, except during the period of construction of the dwelling house.

All homes must install and be connected to an adequate, operational and approved septic system or aerator system. All homes must have a yearly maintenance agreement with said company where tank was purchased to maintain and keep system in good working order.

All propane tanks must be buried. All homes must have a yearly maintenance agreement with said company where tank was purchased to maintain and keep system in good working order.

All exterior lighting, including but not limited to directional lighting, shall be so located, shaded, and of such intensity as not to become a visual nuisance to any adjoining or nearby Lot owner, and shall be subject to approval of the Architectural Control Committee.

No business of any kind shall be permitted in the Subdivision, except any home occupation which is permitted under the ordinances or regulations of Madison County, Illinois. No wall, fences, or fencing of any kind shall be allowed in the front yard of any Lot. No wall, fences or fencing over 6 feet in height shall be allowed on any Lot. All walls, fences and fencing shall be wood construction and be compatible with the natural surroundings, subject to the conditions herein below set out for materials. No chain link, wire, or metal wall, fence or fencing shall be permitted (except that professionally constructed wrought iron fences may be approved). All walls, fences and fencing must be submitted to and approved by the Architectural Control Committee prior to construction, and must be continually maintained to present an attractive appearance, or such walls, fences and fencing will be removed at the expense of the Lot owners.

Each Lot owner shall comply strictly with the setback and building lines shown on the Plat of the Subdivision.

The undersigned and the Homeowners' Association shall have the right, but not the obligation to install amenities in the Subdivision, including, but not limited to, tennis, badminton, volleyball, racquetball and handball courts, in-ground swimming pools, picnic tables, and landscaping.

6. Livestock and Pets: No animals of any kind may be kept, bred or maintained for any commercial purpose.

7. Construction of Residences, Maintenance of Property: All houses must be completed within one year after the date construction thereof commences. All Lots must be completely landscaped within one year after the house is completed. If the house is not completed within one year after construction commences, the Developer shall have the option of completing the house according to the Plans and Specifications submitted and assessing the Lot in the manner provided herein for Lot assessments for Subdivision improvements, for the cost thereof, or of demanding, by written notice, a reconveyances of the Lot to the Developer, in which case the Developer will tender to the Lot owner the original purchase price of the Lot. If landscaping is not completed within one year after completion of the house, Developer shall have the right to complete the landscaping according to the Plans and Specifications submitted and to assess the Lot in the manner provided herein for Lot assessments for Subdivision improvements for the cost thereof.

Any assessments under this provision shall become a lien in favor of the Developer immediately upon his recording a written notice of same with the Madison County Illinois Recorder of Deeds. Nothing in this provision shall require the Developer to complete any such construction or lands aping or to repurchase any such Lot. The remedies herein provided rest solely with the Developer and are available to it at its sole option. Any other Lot owner may sue a Lot owner who fails to comply with this provision for injunctive relief and/or damages. The Developer shall not be a party to any such action and nothing herein shall obligate Developer in any way or make Developer liable for any failure of any Lot upon which such work is being performed.

During the construction, maintenance or refurbishment of any dwelling house or Lot, any littering or damage to the public and private roadways and easements of the Subdivision, and any cleanup of them, shall be the responsibility of the owner any Lot upon which such work is being performed.

Each property owner shall be responsible for mowing and landscape maintenance of such owner's Lot up to the property line of such Lot, and up to the street curb or curbs, such that the Lot will always present a neat and attractive appearance.

The burning of any material outside any dwelling house shall be prohibited, except the burning of leaves in conformity with the statutes of the State of Illinois and the ordinances or regulations of Madison County, Illinois.

8. Oil and Mining Operations: No oil drilling, oil development operations, oil refining, gas storage, quarrying or mining operations of any kind for any mineral or minerals, shall be permitted on any Lot, nor shall oil wells, tanks, tunnels, mineral excavations or shafts be permitted on any Lot. No derrick or other structure designed for use in boring for oil or natural gas or minerals shall be erected, maintained or permitted on any Lot.

9. Garbage and Refuse Disposal: No Lot shall be used or maintained as a dumping ground for rubbish, trash or garbage. Trash, rubbish and garbage and other waste shall not be kept except in sanitary containers located inside the garage of a dwelling house, except on collection days, when said sanitary containers may be placed near the platted streets for collection.

10. Signs: No signs of any kind shall be displayed to the public view on any Lot, except one sign of not more than six square feet, advertising the property for sale or rent, or signs used by a builder to advertise the property during construction and sale of lots and residences, or signed used by the undersigned to identify the Subdivision and to advertise the sale of Lots and residences in the Subdivision. House numbers on homes or mailboxes are permitted as long as same are approved by the Architectural Control Committee prior to installation.

11. Easements: Easements for installation, construction, reconstruction and maintenance of utilities and drainage facilities including retention basins are reserved, as shown on the above-mentioned recorded plat of the Subdivision. NO building or any other structure of any kind shall be placed on, in or over any such easement; and any such building or structure shall be removed at the expense of the Lot owner.

12. Assessments: Annual and special assessments may be established or levied against each Lot and its owners for maintenance of street and entrance landscaping, Subdivision fence, berms, detention basins, drainage and entrance improvements, any amenities in the Subdivision for the use of the Lot owners, and for any other duties, powers, and responsibilities of the Homeowners' Association. Annual assessments shall be established by majority vote of the Lot owners, each Lot having one vote to be cast in the aggregate or in fractions as agreed by and between the owners of that Lot, at the first meeting of the Homeowner's Association. Such assessments may be amended, supplemented, terminated or otherwise modified by majority vote of the Lot owners at any subsequent annual meeting of the Homeowners' Association. Such assessments may be amended, supplemented, terminated or otherwise modified by majority vote of the Lot owners at

any subsequent annual meeting of the Homeowners' Association. Until such time as the Homeowners' Association shall be formed, the Developer, or its designee or its successors and assigns, may establish annual assessments for the uses set forth above, PROVIDED HOWEVER, that any assessment set by the Developer, or its designee or its successors and assigns, shall be determined on an annual basis, the first of said periods to commence upon the date of recording of these Covenants and Restrictions and subsequent annual assessments shall be due on the 1st day of July each year; any prospective Lot purchaser shall be advised, in writing, prior to executing any contract for purchase of such Lot of the amount of such assessment and if no such notice be given, then that Lot shall not be subject to assessment during the year of purchase. Any assessments for a Lot subsequent to the year of purchase shall be reasonably related to the expense of maintaining the said improvements and notice thereof shall be given to existing Lot owners not less than 30 days before the due date. In any event, no such assessment may be levied by the Developer, or its designee or its successors and assigns, unless and until seventy-five percent (75%) of the Lots of said Subdivision have been sold, as defined herein. Any unpaid assessment against a Lot shall be the personal obligation of each owner of that Lot at the time of assessment, jointly and severally, and shall also become a lien against that Lot upon filing of a notice thereof in the Recorder's Office of Madison County, Illinois. If such notice is not so filed on or before December 1 of the following year, said right to a lien shall expire. Any purchaser, lender, or title company shall have the right to rely upon any statement or assurance by an officer of the Homeowners' Association, or if the Homeowners' Association has not been formed, of the Developer, or its designee or its successors and assigns, of the amount or payment status of any such lien.

13. Waterfall: A waterfall entrance will be built on Lot 1 of the subdivision at the entrance to the subdivision. It shall be the responsibility and obligation of each Lot Owner in the Subdivision to maintain the waterfall. The owner of Lot 1 and any subsequent owner of said Lot 1 may not disturb or any way alter the waterfall located on Lot 1.

In addition to the assessments and dues provided for in Paragraph 12, hereinabove, but levied and collected in like manner, each lot in Timber Ridge Estates, except any lot owner by the Developer, shall pay annual dues of $100.00, which dues shall be due and payable on the 1st day of July each year, and which dues shall be prorated for any owner purchasing a lot from the Developer.

14. Homeowners' Association: After all the Lots in the Subdivision have been sold by the undersigned or after ten (10) years from the date of beginning of dwelling occupancy by the first Lot owner to begin residency in a completed dwelling, the "Timber Ridge Estates Homeowners' Association" shall be established as a not-for-profit corporation, herein called the "Homeowners' Association", which shall be vested with all powers, duties and responsibilities set out to the Homeowners' Association in these Covenants and Restrictions and as provided by law. The title to all amenities, landscaping, Subdivision fences, entrance improvements, easements and Subdivision appurtenances shall be conveyed by the undersigned to the Homeowners' Association. The owners of each Lot shall collectively own one share in the Homeowners' Association. The Homeowners' Association shall, from time to time, adopt bylaws for its constitution, operation and deliberation, in conformity with these Covenants and Restrictions. The Homeowners' Association has the right to assess dues for the maintenance of the Subdivision. It shall be the duty of the Homeowners' Association to enforce these Covenants and Restrictions. Majority rule shall prevail except as otherwise set out herein. Robert's Rules of Order are hereby adopted for conducting any and all meetings of the Homeowners' Association, except as set out herein or in the bylaws adopted by the Homeowners' Association.

15. Covenants and Restrictions to Run with the Land: These Covenants and Restrictions shall run with and inure to the benefit of and be binding upon the lands herein described and each and every owner thereof, whether original purchaser of any Lot, or successor thereto, or Developer, or successor thereto, shall be bound by the terms, covenants, conditions and restrictions herein contained and the heirs, successors, assigns, personal representatives, devisees, and